

22STCV30142 22STCV30142

County: los-angeles

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Case Number: 22STCV30142 Hearing Date: July 2, 2026 Dept: SED

ELIZABETH SANCHEZ

V. US VI DOWNEY, LLC, ET AL.

CASE NO.: 22STCV30142

HEARING: 07/02/2026 @

9:30 a.m.

#7

TENTATIVE ORDER

Plaintiff Elizabeth Sanchez's motion for reconsideration
is DENIED.

Moving party to give notice.

Plaintiff Elizabeth Sanchez (Plaintiff) moves this Court to
reconsider its February 17, 2026 Order.

Background

This is a premises liability
action arising out of an alleged slip-and-fall incident that occurred on or
about November 21, 2021, at a commercial shopping center located at 9050 Apollo
Way in Downey, California. Plaintiff
alleges that she fell into a drainage area or sinkhole in the parking lot
outside a T.J. Maxx store and sustained personal injuries as a result.

Plaintiff filed this action on September 15, 2022, against Defendants US VI Downey, LLC, City of Downey and Does 1 through 25, inclusive, asserting two causes of action: (1) Negligence and (2) Dangerous Condition of Public Property and Statutory Liability of Government Entities.

On November 6, 2025, Plaintiff filed a notice of settlement of the entire case which vacated all dates in this case, including the trial date.

On December 17, 2026, Defendant US VI Downey, LLC (Defendant) filed a motion to enforce settlement.

On February 17, 2026, Plaintiff filed an ex parte application seeking a continuance to retain new counsel evaluate the settlement, to oppose the instant motion, and to prepare for trial. The Court denied Plaintiff's ex parte application that same day.

On February 17, 2026, the Court found that the parties entered into a valid and binding settlement agreement, and enforcement under Code of Civil Procedure section 664.6 is warranted. Thus, the Court granted Defendant's motion to enforce the settlement. The Court also ordered the case dismissed without prejudiced.

On April 17, 2026, Defendant filed a notice of entry of judgment.

On May 4, 2026, Plaintiff filed the instant motion for reconsideration.

No opposition has been filed.

Legal Standard

"A party who originally made an application for an order which was refused in whole or part, or granted conditionally or on terms, may make a subsequent application for the same order upon new or different facts, circumstances, or law, in which case it shall be shown by affidavit what application was made before, when and to what judge,

what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.”
(Code Civ. Proc., § 1008, subd. (b).)

Analysis

Plaintiff moves the Court for
reconsideration of the February 17, 2026 Order.

On April 27, 2026, the Clerk
served notice that Plaintiff had filed a Notice of Appeal from the Court's
February 17, 2026 Order.

“...[T]he perfecting of an appeal
stays proceedings in the trial court upon the judgment or order appealed from
or upon the matters embraced therein or affected thereby, including enforcement
of the judgment or order, but the trial court may proceed upon any other matter
embraced in the action and not affected by the judgment or order.” (Code of Civil Procedure, § 916, subd. (a).) The
automatic stay applies if the trial court
proceeding “directly or indirectly seek[s] to enforce, vacate or modify
appealed judgment or order[,]...[when] a trial court proceeding also affects
the effectiveness of an appeal if the possible outcomes on appeal and the
actual or possible results of the proceeding are irreconcilable...[or when]
a proceeding affects the effectiveness of the appeal if the very purpose of the
appeal is to avoid the need for that proceeding.” (Varian Medical Systems, Inc. v. Delfino (2005)
35 Cal.4th 180, 189-90.)

Here, Plaintiff seeks
reconsideration of the very order that is the subject of the pending appeal. A ruling on the instant motion would
necessarily modify, vacate, or otherwise affect the appealed order and would
therefore affect the effectiveness of the appeal. Accordingly, Code of Civil Procedure section
916 divests this Court of jurisdiction to rule on Plaintiff's motion for
reconsideration while the appeal is pending.

Conclusion

Based on the foregoing, Plaintiff
Elizabeth Sanchez's motion for reconsideration is DENIED.